

DEPARTMENT OF VETERANS AFFAIRS

**FAR 8 – Justification for Limiting Sources (LSJ)
For
Limiting Sources (<SAT)**

Acquisition Plan Action ID: 36C249-26-AP-1295

- 1. Contracting Activity:** Department of Veterans Affairs, Network/Program Contracting Office NCO9 located at 1639 Medical Center Pkwy, Murfreesboro, TN, 37129 in support of VISN 09 VA Health Care System at 1310 24TH Ave S, Nashville, TN, 37212.
Purchase Request #: 626-26-1-4313-0017
- 2. Description of Action:** Four pharmaceutical storage refrigerators are being requested to support new activations in TVHS catchment area. These activation location are additional Community Based Outpatient Clinics (CBOC) that will open up access to Veteran care.

Order against: ☒ FSS Contract Number: See below.

Name of Proposed Contractor: MG Scientific, INC
Street Address: 8500 107th Street
City, State, Zip: Pleasant Prairie, WI 53158
Phone: 800.343.8338
Contract Number: GS-07F-154CA

Name of Proposed Contractor: The Office Group INC
Street Address: 372 Wythe Creek Rd
City, State, Zip: Poquoson, VA 23662
Phone: 888.767.9833
Contract Number: 47QSEA20D004W

Name of Proposed Contractor: Franklin Young International, Incorporated
Street Address: 1042 N. Mountain Ave, Suite 310
City, State, Zip: Upland, CA 91786
Phone: 618.724.2780
Contract Number: GS-07G-0636W

Name of Proposed Contractor: Fisher Scientific Company, LLC
Street Address: 300 Industry Dr
City, State, Zip: Pittsburgh, PA, 15275
Phone: 800.766.7000
Contract Number: GS-07G-161BA

3. Description of Supplies or Services:

The estimated value of the proposed action is \$ 26,045.96.

Three pharmaceutical storage refrigerators, (TSX2305PA, TSC REF PHARM 23CF 120V/60HZ), and one TSX1205PA are high-performance refrigerators and freezers are designed with features that support sample protection, sustainability objectives and the U.S. Environmental Protection Agency's Significant New Alternatives Policy (SNAP).

Salient Characteristics for Single Door refrigerators

- Single Door Glass Refrigerator with Pharmacy-Grade rating for Medication storage needed in the medication rooms at various clinics being activated
- Medications and Vaccines are stored, cannot be stored elsewhere or transferred to another location within the facility
- Refrigerator cannot exceed the following external dimensions due to space limitations: 38" Deep, 57" Width, 79" Height and must be at least internally 20" Deep, 19.8" Width, 52" Height
- Refrigerator must fit through pharmacy entry doors (Maximum of 34" Width and 83" Height)
- Refrigerator needs to have at least 4-5 basket shelves that pull out for easier removal of medications/vaccines for approximately 15-20 medications, including IV admixtures and injection kits, and be able maintain a temperature of 2-8 degrees Celsius (Approximately 36-46 degrees Fahrenheit) 24 hours per day/7 days per week while fully powered for approximately 10-15 years (average Pharmacy-grade Refrigerator Lifecycle)
- Refrigerator should have audible alarm for out of temperature range alerts.
- Refrigerator should have an LCD screen that has the ability to see logs/graphs of temperatures, highs and lows, and settings
- Plug should be a NEMA 5-15, and Electrical Requirements be less than 120V, and pull 15 Amps or less
- Refrigerator should be energy efficient
- Refrigerator should ideally have a Manufacturer's Warranty that lasts 1-2 years and be accessible for Engineering staff to work on it once that warranty timeframe is exceeded but still within its functional lifecycle

A similar requirement was awarded by NCO 09 during Fiscal Year 2025 (Contract #36C24925F0274), wherein the requirement was competed in accordance with FAR Part 8 using a small business set-aside .

4. Authority:

Order Against FSS: Authority of the Multiple Award Schedule Program, Title III of the Federal Property and Administrative Services Act of 1949 (41 USC 251, et seq.); Title 40 USC 501, Services for Executive Agencies; and Section 803 of the National Defense Authorization Act of 2002 (PL 107-107) and implemented by [FAR 8.405-6](#). Mark the applicable exception:

- ☐ **An urgent and compelling need exists**, and following the procedures would result in unacceptable delays([FAR 8.405-6\(a\)\(1\)\(i\)\(A\)](#));
- ☐ **Only one source** is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized; ([FAR 8.405-6\(a\)\(1\)\(i\)\(B\)](#));
- ☐ In the interest of economy and efficiency, the new work is **a logical follow-on** to an original Federal Supply Schedule order and the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. **The original order was not previously issued under sole-source or limited-sources procedures** ([FAR 8.405-6\(a\)\(1\)\(i\)\(C\)](#)); or
- ☒ **Items peculiar to one manufacturer.** An item peculiar to one manufacturer can be a particular brand name, product, or a feature of a product, peculiar to one manufacturer). A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer ([FAR 8.405-6\(b\)](#)).

5. **Rationale/explanation to support cited authority:** Due to the space limitations that the pharmacy has, the refrigerator replacement cannot exceed certain external dimensions and specifications. The Brand Name requirement is the only product that will satisfy the requirements to safely store all the pharmaceutical products for the inpatient and outpatient pharmacies to ensure there are no temperature excursions.
6. **BRAND NAME ONLY:** This buy is estimated to exceed \$25,000 and this documentation will be posted along with the RFQ on e-Buy, as required by FAR 8.405-1(e).
7. Note that this determination satisfies the requirements of [FAR 8.405-6](#). The requirement to prepare a written justification [IAW FAR 6.303](#) does not apply to Federal Supply Schedules.

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Delaney Dickey
Contracting Officer
Network Contracting Office (NCO 09)